

25STCV27067 25STCV27067

County: los-angeles

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV27067

BENNY

BERN, et al. vs AMERICAN HONDA MOTOR CO., INC.

August

4, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT AMERICAN HONDA MOTOR CO., INC.'S MOTION TO COMPEL FURTHER RESPONSES
TO FORM INTERROGATORIES, SET ONE, TO PLAINTIFFS AND REQUEST FOR MONETARY
SANCTIONS.

RULING:

The Court orders the Motion
off calendar as moot and denies sanctions.

Defendant to give notice.

I.

BACKGROUND

On September 15, 2025, BENNY BERN and ROSIE BERN (Plaintiffs) filed a Lemon Law Complaint against AMERICAN HONDA MOTOR CO., INC. (Defendant), alleging four Causes of Action under the Song-Beverly Consumer Warranty Act (Civ. Code §§ 1790-1795.8), along with a Fifth Cause of Action for Fraudulent Inducement - Concealment.

Plaintiffs allege purchasing, with warranty provisions, a 2025 Honda Accord that Defendant manufactured, which had defects, including infotainment and engine. Plaintiffs further allege that Defendant failed to repair the vehicle within a reasonable number of attempts and did not promptly replace it or make restitution.

On July 2, 2026, Defendant filed the Motion to Compel Further Responses to Form Interrogatories, and for sanctions, on grounds that the objection-only responses to specified item numbers are not code-compliant.

Plaintiff opposes, based on arguments that the Motion is moot after supplemental responses, and Defendant only met and conferred by one letter on May 20, 2026, before filing the Motion.

II.

LEGAL STANDARD

Where respondents object or respond inadequately to discovery requests, a motion lies to compel further responses, as to which respondent has the burden to justify the objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255; Code Civ. Proc., §§ 2030.300, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to

interrogatories....”]; and 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to an inspection demand....”].) A propounding party’s remedy when it deems objections in discovery responses to be without merit is to move for an order compelling further responses. (Catalina Island Yacht Club v. Superior Court (2015) 242 Cal.App.4th 1116, 1127.) “While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.)

III.

ANALYSIS

In a combined Reply, Defendant just advocates \$1,500.00 in monetary sanctions against Plaintiff’s counsel.

In the Opposition, Plaintiffs advocate denying the Motion as moot after supplemental responses served July 23, 2026. They add that Defendant served a meet and confer letter but failed to do anything thereafter.

Where respondents served untimely discovery responses after parties have filed motions to compel

responses, courts have broad discretion as to ruling. (*Sinaiko Healthcare Consulting, Inc. v. Klugman* (2007) 148 Cal.App.4th 390, 409; *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 256 [citing *Sinaiko* regarding court considering supplemental responses served after motion].) Under some circumstances, it may be an abuse of discretion for a court to treat a motion as being one to compel further responses, without requiring a separate motion. (*St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778.)

Here, the Court determines that the requests to compel responses are moot after supplemental responses.

As for sanctions, the Court finds that limited meeting and conferring occurred, but it was insufficient without at least one follow-up under the circumstances where Plaintiffs did not respond to the meet and confer letter.

IV.

CONCLUSION

The Court orders the Motion off calendar, and denies sanctions, for reasons set forth above.